

**FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges**

TOYOTA DE PUERTO RICO, CORP.
Complainant

Docket No. 19-02

v.

PUERTO RICO PORTS AUTHORITY;
CROWLEY PUERTO RICO SERVICES;
AND OCEANIC GENERAL AGENCY INC.
Respondents

**URGENT MOTION REQUESTING ORDER TO ADDRESS
1. PRPA'S INTENT TO REQUEST STAY OF PROCEEDINGS AND
2. PRPA'S FAILURE TO DELIVER CORPORATE DEPOSITION TRANSCRIPT**

TO THE HONORABLE COMMISSION:

COMES NOW Toyota de Puerto Rico Corp., hereinafter Toyota, through its undersigned counsel, and respectfully requests:

I. PRPA's Intent to Request Stay of Proceedings

Last November 21, 2019, the parties filed their third and last joint status report on the closing of discovery. At paragraph 8 of said motion, PRPA announced its intent to file a motion to stay all proceedings until the *Dantzler* case is resolved. Toyota, however, is scheduled to file its brief and supporting factual statement next Monday, December 2, while PRPA has yet to file the motion in question.

Given the intervening holidays, Toyota is concerned that if any such motion is filed now it may not be decided in time to impact this deadline. Thus, should a stay be requested and granted, Toyota will have unnecessarily advanced its position and would have to file

a revised brief after the *Dantzler* decision. Toyota is prepared to meet the December 2, deadline, but is concerned that the scenario described is neither cost effective nor fair to Toyota.

Toyota respectfully requests that PRPA be given a peremptory deadline to file its request for stay, and that Toyota be allowed to file its brief promptly after said motion is decided. By making this request, Toyota does not concede that the request for stay would have merits and instead intends to oppose it.

II. PRPA'S Failure to Deliver Corporate Deposition Transcript

On a separate note, Toyota has not received the transcript of the deposition that PRPA took of its corporate representative, Mr. Daniel O'Neill, last November 5. The undersigned counsel followed up on this matter with PRPA's counsel last Saturday. Toyota needs that transcript to complete its brief. It respectfully requests that PRPA be ordered to provide it expeditiously. Toyota could need more time for its filing if the transcript is not received today.

An original and five copies of this Joint Motion will be filed with the Office of the Secretary.

WHEREFORE Toyota respectfully requests:

1. that PRPA be ordered to file its motion to stay no later than tomorrow, and that Toyota be granted five days to file its motion should the request be denied.
2. That PRPA be ordered to produce the transcript of Mr. Daniel O'Neill's deposition no later than today, or else bar PRPA from using it as evidence.

RESPECTFULLY SUBMITTED.

In San Juan, Puerto Rico, this 26th day of November, 2019.

REICHARD & ESCALERA LLC

s/Sylvia M. Arizmendi

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s/Alana M. Vizcarrondo

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CERTIFICATE OF SERVICE

We hereby certify that on this same date we served a copy of the foregoing document upon each and all parties of record through their respective attorneys by electronic mailing to the following addresses:

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